

Contentious Chamber

Decision on the merits 150/2024 of December 4, 2024

File number: DOS-2019-01738

Subject: use of personal data of members and trainees of the IPCF

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Frank De Smet and Jelle Stassijns, members; Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority<sup>1</sup>, hereinafter "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, hereinafter "the complainant";

The defendant:

The Institute of Tax Advisors and Accountants (ITAA), as the legal successor of the Professional Institute of Certified Accountants and Tax Advisors (IPCF) since the law of March 17, 2019 (effective September 30, 2020), with its registered office located at Avenue Émile Jacqmain 135/2, 1000 Brussels, having company number 0737.810.605, represented by counsel Me Ingrid De Poorter and Me Steven De Grave, hereinafter "the defendant".

<sup>1</sup> As amended by the law of December 25, 2023, amending the law of December 3, 2017, establishing the Data Protection Authority.

Decision on the merits 150/2024— 2/23

I.

Facts and procedure

1.

On March 20, 2019, the complainant filed a complaint with the Data Protection Authority against the defendant, explicitly requesting to preserve his anonymity during the processing of the complaint.

2.

The subject of the complaint concerns how the defendant, a professional organization, processes the personal data of its members and trainees. The defendant published the personal data of members and trainees via a public search engine on its web application. The defendant allegedly used the data of its members and trainees during the period leading up to the elections held within the professional organization, for direct marketing purposes, including the sending of electoral propaganda emails by various candidates for the elections within the professional organization, as well as for invitations to events with commercial companies.

3.

On June 12, 2019, the complaint was declared admissible by the Frontline Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber pursuant to Article 62, § 1 of the LCA.

4.

On June 27, 2019, in accordance with Article 96, § 1 of the LCA, the request from the Contentious Chamber to conduct an investigation was transmitted to the Inspection Service, along with the complaint and the inventory of documents.

5.

On March 10, 2020, the investigation by the Inspection Service was concluded, the report was

attached to the file, and it was transmitted by the general inspector to the president of the Contentious Chamber (Article 91, § 1 and § 2 of the LCA).

The report contains, in summary, the following findings:

- The publication of the personal data of members and trainees via the search engine on the website does not rest on any sufficient legal basis, as required under Article 6 of the GDPR and the related principle of fairness (Article 5.1.a) of the GDPR).
- The personal data of members and trainees have been improperly used by several candidates in the context of the elections within the defendant's organization, which constitutes a violation of Article 4.12) in conjunction with Article 33 of the GDPR.
- The sending by the defendant of information without commercial intent in the form of internal or external newsletters or the sending of invitations to events (in collaboration with or without an external commercial partner) falls under the general notion of direct marketing. The Inspection Service finds that individuals

Decision on the merits 150/2024— 3/23

The parties concerned were not sufficiently informed of their right to object, resulting in a violation of Articles 12 and 21.3 of the GDPR. According to the Inspection Service, the defendant invokes a dual (triple) legal basis for sending unsolicited communications, which is not compliant with Article 6 of the GDPR and the related principle of fairness (Article 5.1 a) of the GDPR).

- The Inspection Service notes that there is a data breach and, consequently, a violation of the following provisions: Article 32 of the GDPR in conjunction with Article 5.2 of the GDPR and Article 33.5 of the GDPR.
- The absence of subcontracting agreements with the publishers of publications leads the Inspection Service to find a violation of Article 28.3 of the GDPR.
- 

In the absence of the designation of a data protection officer, there is a violation of Article 37 of the GDPR.

6.  
On November 20, 2020, the Disciplinary Chamber decides, based on Article 95, § 1, 1° and Article 98 of the LCA, that the case can be examined on the merits and informs the concerned parties by registered mail of the provisions as stated in Article 95, § 2 and Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions. The deadline for receiving the complainant's response conclusions was set for December 11, 2020, and for the defendant's reply conclusions on January 4, 2021.

7.  
On November 27, 2020, the defendant agrees to receive all communications related to the case electronically and expresses his intention to exercise the right to be heard, in accordance with Article 98 of the LCA. The defendant also requests a copy of the file (Article 95, § 2, 3° of the LCA), which was provided to him on December 4, 2020.

8.  
On December 7, 2020, the Disciplinary Chamber receives an email from the complainant stating that he does not wish to add anything to the file.

9.  
On December 30, 2020, the Disciplinary Chamber receives the reply conclusions from the defendant. In these, the defendant essentially presents his arguments regarding the legal bases he invokes both for the publication of personal data of members and trainees through the public search engine and for the sending of newsletters. Regarding the election campaign emails sent by various candidates in the professional organization, the defendant claims not to be associated with them. Furthermore, the defendant addresses the findings of the Inspection Service regarding the alleged data breach, as well

as the conclusion of a subcontracting agreement with publishers and the designation of a data protection officer.

10.

On November 13, 2023, the parties are informed that the hearing will take place on December 7, 2023.

11.

On December 5, 2023, the Disciplinary Chamber requests the parties to submit evidence if any changes have occurred since the submission of the inspection report, certifying that the defendant has taken measures to address the findings of the Inspection Service. On this occasion, the defendant is given the opportunity to submit supplementary conclusions. The deadline for these conclusions is set for December 19, 2023, at the latest. The complainant will then have the opportunity to reply by January 5, 2024, at the latest, with a final opportunity for the defendant to reply by January 19, 2024, at the latest.

12.

On December 5, 2023, the complainant indicates that he wishes to remain anonymous and waives his right to participate in the hearing. He also does not add any new elements to the file.

13.

On December 5, 2023, the defendant requests an extension of the deadline to provide additional explanations.

14.

Following this request from the defendant, the Disciplinary Chamber schedules a new hearing date for February 6, 2024, on December 6, 2023, as well as a new date for the submission of supplementary conclusions by the defendant, set for January 8, 2024, at the latest, with the possibility for the complainant to reply by January 19, 2024, at the latest, and for the defendant to do so by January 31, 2024, at the latest.

15.

On January 8, 2024, the Disciplinary Chamber receives the supplementary conclusions from the defendant in which the current data processing policy of the ITAA as the legal successor is explained in light of past findings.

These conclusions are not followed by any reply from the complainant and consequently no further reply from the defendant.

16.

On February 6, 2024, the defendant is heard by the Disciplinary Chamber.

17.

On February 12, 2024, the minutes of the hearing are sent to the parties, in accordance with Article 54 of the internal regulations.<sup>2</sup> Although as a party present at the hearing, the defendant may submit written comments to be attached to the minutes, the Disciplinary Chamber has received no comments regarding the minutes.

<sup>2</sup> This refers to the internal regulations as applicable to complaints and procedures initiated before June 1, 2024. This is the result of the law of December 25, 2023, amending the law of December 3, 2017, establishing the data protection authority, which comes into force on June 1, 2024, after which the internal regulations have been adapted for procedures initiated after this effective date.

Decision on the merits 150/2024— 5/23

## II. Motivation

### a) Legal basis

-

Public search engine

18.

In the first part of the complaint, the complainant argues that the defendant has published the personal data of members and trainees on its web application via a public search engine. The complainant asserts that he has never given his explicit consent to the defendant for the publication of his personal data on the defendant's website as a mandatory member of the defendant's organization.

19.

In its report, the Inspection Service emphasizes that regarding the publication of the personal data of members, the defendant invokes several legal bases for the same processing, namely Article 6.1 a), 6.1 c), and 6.1 f) of the GDPR.

20. The investigation by the Inspection Service indeed revealed that the defendant relies on the legal obligation (Article 6.1 c) of the GDPR) to publish data recorded in its internal register and specifically refers to Article 44, paragraph 5 of the law of April 22, 1999, concerning accounting and tax professions. The Inspection Service notes in this regard that, while the aforementioned provision certainly constitutes a legal basis for the processing of personal data of members and trainees in the form of automated processing, there is, however, no sufficient legal basis for the publication of this personal data in a public register, accessible via the public search engine.

21.

The report of the Inspection Service also indicates that the privacy statement mentions another legal basis for the publication of this same personal data, namely the legitimate interest of the defendant (Article 6.1 f) of the GDPR).

22.

Following the investigation by the Inspection Service regarding the use of personal data included in the public register for the election of the defendant's members (see

3 Article 44, paragraph 5 of the law of April 22, 1999, states the following:

The professional institute maintains a register of certified accountants and certified tax advisors as well as a list of trainee accountants and trainee tax advisors. This register and this list of trainees consist, on the one hand, of those who practice their profession on behalf of third parties on an independent basis, namely external members and external trainees, and on the other hand, of those who exclusively practice the profession in a subordinate relationship via an employment contract or within the framework of a function remunerated by public authorities, namely internal members and internal trainees. If specifically targeted, explicit reference is made to the categories below, namely respectively "external professionals or external trainees" or "internal professionals or internal trainees." This provision was repealed by the royal decree of September 11, 2020, establishing the date of entry into force of the law of March 17, 2019, concerning the professions of chartered accountant and tax advisor and repealing the law of April 22, 1999, concerning accounting and tax professions, except for certain provisions (hereinafter the royal decree of September 11, 2020).

Decision on the Merits 150/2024—6/23

hereinafter), the defendant informed the Inspection Service that in the future, prior consent (Article 6.1 a) of the GDPR) would be requested from all members before publishing their data and making it searchable on the public search engine.

23.

The defendant explained in its response conclusions that the recording of personal data (name, place of professional practice, and contact details) in the defendant's internal register was solely based on the defendant's legal obligation in this regard as a professional organization under Article 44 of the law of April 22, 1999, relating to accounting and tax professions.

24.

Regarding publication via the search engine, the defendant states that for both the publication of the name and place of professional practice as well as for the publication of the professional contact details of the concerned individuals, the processing was initially based on its legal obligations. However, following the findings of the Inspection Service, the legal basis was modified. After the modification, the publication of personal data via the search engine, which the defendant claims constitutes a distinct processing, is based on the legal basis of legitimate interest concerning the name and place of professional practice of the concerned individuals. The publication of the contact details of the concerned individuals was removed after the Inspection Service found that the contact details were used in the context of organizing internal elections within the defendant. From that moment on, the publication of the contact details of the concerned individuals was only possible with the prior consent of the concerned individual. The defendant emphasizes that a distinct legal basis is used for publication, which constitutes a separate processing process.

25.

In this regard, the Contentious Chamber observes that the legal basis was therefore modified by the defendant post factum. The Contentious Chamber emphasizes that due to the obligation to provide, at the time of collecting personal data, the legal basis invoked by the data controller (Article 13.1 c) of the GDPR), the defendant must decide, before commencing data processing, what the legal basis for it is.

26.

The Contentious Chamber finds that at the time of the facts that are the subject of the complaint, the defendant was using Article 6.1 c) of the GDPR as the legal basis, more specifically the legal obligations applicable to it as a professional organization. Specifically, the defendant invoked in this regard Articles 44 and 46 of the law of April 22, 1999, in conjunction with Article 3 of the law of February 25, 2023, amending the aforementioned law, which legally obliges the defendant to maintain the register of certified accountants and certified tax accountants as well as the list of trainee accountants and of

4 See in particular: Decision on the Merits 133/2021 of December 2, 2021; Decision on the Merits 147/2022 of October 17, 2022; Decision on the Merits 105/2023 of August 1, 2023.

Decision on the merits 150/2024— 7/23

accountants-tax advisors

trainees. On this basis, the defendant proceeded to maintain a register of the aforementioned individuals practicing the profession, in the form of a searchable computer file at the defendant's headquarters. In anticipation of the new Internal Regulations of 2002, the defendant transformed the public part of the register, which had previously been available at the headquarters, into a web module. According to the defendant, this change was motivated by the fact that an increasing number of unlicensed individuals were presenting themselves as accountants or tax advisors, and in this context, the public search engine aimed to protect the (potential) client in light of the purpose stated in Article 46 of the law of April 22, 1999. The defendant argues that merely making the register available at the headquarters no longer achieved this predefined purpose.

27.

The Disciplinary Chamber emphasizes that the legal provisions as they were applicable at the time of the complaint and invoked by the defendant do not impose the obligation to publish the personal data in question as such and to make it searchable via a search engine. Article 44 only obliges the defendant to maintain the register of licensed accountants and tax advisors, as well as the list of trainees. Article 46 of this same law states that no one may practice this profession without being registered on the register or on the list of trainees.

28.

The defendant considered these legal provisions sufficient to base the public search engine on Article 6.1.c) of the GDPR. In this regard, the defendant argues that an increasing number of individuals were presenting themselves as accountants or tax advisors without the required license. Furthermore, potential clients were increasingly searching for an accountant via the Internet, which from a social perspective significantly increased the risk of working with an unlicensed accountant or tax advisor. In order to protect the profession and potential clients, the public search engine was deemed most appropriate by the defendant, given that, in his view, merely keeping the register available at the defendant's headquarters no longer met the purpose intended by the legislator (Articles 44 and 46 of the law of April 22, 1999).

29.

Regarding the legal basis referred to in Article 6.1 c) of the GDPR, the Disciplinary Chamber draws attention to the fact that it only applies if the processing of data is necessary for the execution of a legal obligation on the part of the data controller. This means that compliance with this obligation imposes on the

5 Article 46 of the law of April 22, 1999, relating to accounting and tax professions: No one may practice as an independent, whether primarily or secondarily, the profession of accountant or use the professional title of "licensed accountant," or "trainee accountant," or any other title likely to create confusion if they are not registered on the register of holders of the profession or on the list of trainees

maintained by the professional institute.

Furthermore, no one may use the professional title of "licensed tax advisor" or "trainee tax advisor," or any other title likely to create confusion, if they are not a licensed accountant and if they are not registered on the register of "licensed tax advisors," or on the list of "trainee tax advisors" maintained by the professional institute.

Decision on the merits 150/2024—8/23

responsible for processing to carry out the processing of data without having any freedom of choice in this regard. In light of these elements, it is important to refer to Recital 41 of the GDPR<sup>6</sup>, which states that a legislative measure must be clear, precise, and its application predictable for the individuals to whom it applies. More specifically, Recital 45 of the GDPR<sup>7</sup> provides that a single legal provision serving as the basis for multiple processing operations may suffice.

30. The applicable legislation must also define the purpose of the processing and may also specify the general conditions of the GDPR that the processing of personal data must comply with to be lawful, as well as establish specifications aimed at determining the data controller, the type of personal data being processed, the data subjects, the entities to which the personal data may be communicated, the limitations of purpose, the retention period, and other measures aimed at ensuring lawful and fair processing (Article 6.3 of the GDPR)<sup>8</sup>.

31.

The Litigation Chamber emphasizes in this regard that in accordance with Article 6.3 of the aforementioned GDPR, read in conjunction with Article 22 of the Constitution, and in light of Articles 7 and 8 of the Charter of Fundamental Rights of the European Union, a legislative standard must define the essential characteristics of data processing necessary for the execution of a mission of public interest or relating to the exercise of public authority vested in the data controller. The Litigation Chamber emphasizes that the processing in question must be framed by a standard that is sufficiently clear and precise, and whose application is predictable for the individuals concerned. In this regard, the Litigation Chamber emphasizes, however, that missions of public interest or relating to the exercise of public authority

6 Recital 41 of the GDPR. When this Regulation refers to a legal basis or legislative measure, it does not necessarily mean that the adoption of a legislative act by a parliament is required, without prejudice to the obligations provided for under the constitutional order of the relevant Member State. However, this legal basis or legislative measure should be clear and precise, and its application should be predictable for the individuals concerned, in accordance with the case law of the Court of Justice of the European Union (hereinafter referred to as the "Court of Justice") and the European Court of Human Rights.

7 Recital 45 of the GDPR. When processing is carried out in accordance with a legal obligation to which the data controller is subject or when it is necessary for the performance of a task carried out in the public interest or in the exercise of official authority, the processing should have a basis in Union law or in the law of a Member State. This Regulation does not require a specific legal provision for each individual processing operation. A legal provision may suffice to provide the basis for several processing operations based on a legal obligation to which the data controller is subject or when the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority. It should also be for Union law or the law of a Member State to determine the purpose of the processing. Furthermore, this law could specify the general conditions of this Regulation governing the lawfulness of the processing of personal data, establish specifications aimed at determining the data controller, the type of personal data being processed, the data subjects, the entities to which the personal data may be communicated, the limitations of purpose, the retention period, and other measures aimed at ensuring lawful and fair processing. It should also be for Union law or the law of a Member State to determine whether the data controller carrying out a task in the public interest or in the exercise of official authority should be a public authority or another natural or legal person governed by public law or, when the public interest requires it, including for health purposes, such as public health, social protection, and the management of healthcare services, a private law entity, such as a professional association.

8 See also in this regard the standard opinion 65/2023 of the Data Protection Authority dated March 24, 2023, regarding the drafting of normative texts, in particular point 14, second bullet: <https://www.autoriteprotectiondonnees.be/publications/avis-n-65-2023.pdf>.

Decision on the merits 150/2024—9/23

The public responsibilities vested in data controllers are often not based on precisely defined obligations or legislative standards, more specifically the definition of the essential characteristics of data processing. Processing occurs rather on the basis of a more general authorization to act, as necessary for the fulfillment of the mission. As a result, in practice, the legal basis in question often contains no provision concretely describing the necessary data processing. Data controllers wishing to invoke Article 6.1(e) of the GDPR on the basis of such a legal basis must then perform their own balancing between the necessity of processing for the public interest mission and the interests of the data subjects.

32. Based on the above, the Contentious Chamber considers that the legal provisions (Articles 44 and 46 of the law of April 22, 1999) invoked by the defendant are limited to determining the purpose of the register of individuals exercising the profession, namely the maintenance of the register of certified accountants and certified tax advisors, as well as the list of trainee accountants and trainee tax advisors. As the defendant points out, these provisions aim to subject the exercise of the profession to strict ethics and approval conditions that ensure, promote, and protect quality, professionalism, and the trust relationship with the (future) client. The public register must contribute to this. However, the Contentious Chamber notes that the legal provisions in question contain no indication obliging the defendant to publish the register of the concerned professionals online via the search engine. On the contrary, the defendant proceeded with the publication solely on the basis of a balancing that he performed himself, which he also acknowledges in the response conclusions. The defendant expressly states in this regard that the legislator himself did not provide any clear modalities regarding the form of the register and how it should be accessible to achieve the intended purpose. The defendant published it because he believed that at the present time, the availability of the register at the headquarters did not allow for achieving the intended objective. The defendant therefore did not act on the basis of an obligation imposed by the legislator.

33. Consequently, the Contentious Chamber must conclude that Article 6.1(c) of the GDPR could not serve as a basis for the publication of data of individuals exercising the profession of accountant or tax advisor. The correct legal basis on which the IPCF should have relied was the execution of the public interest mission with which it was entrusted (Article 6.1(e) of the GDPR), and not the legitimate interest (Article 6.1(f) of the GDPR) on which it subsequently thought it could base the publication of personal data via the search engine, following

9 See among others: Decision on the merits 124/2021 of January 10, 2021; Decision on the merits 138/2021 of December 8, 2021; Decision on the merits 24/2021 of February 19, 2021; Decision on the merits 126/2022 of August 18, 2022; Decision on the merits 162/2022 of November 16, 2022.

Decision on the merits 150/2024—10/23

the intervention of the Inspection Service. Not only can a legal basis not be modified a posteriori, but an organization cannot invoke legitimate interest as a legal basis in the exercise of its public interest missions if all the conditions of Article 6.1 e) of the GDPR are not met.

34. The Contentious Chamber does not overlook the fact that the legislator has remedied this imperfection, namely the absence of a provision in the law requiring the defendant to publish the register of the concerned professionals online via the search engine, by the law of March 17, 2019, relating to the professions of certified accountant and tax advisor. In this way, the defendant has officially merged with the Institute of Tax Advisors and Certified Accountants (ITAA), established by Article 61 of the aforementioned law. On this basis, the ITAA has been subrogated into the rights and obligations of the defendant. The ITAA can now invoke its mission, which is anchored in a legal standard (Article 6.1 c) of the GDPR) in accordance with Article 6.3 GDPR. The mission of the ITAA is explicitly described in Article 62 of the law of March 17, 2019, including specific provisions relating to data protection. Thus, in Article 62, § 2 of this law, the ITAA is designated as the data controller and in

this capacity, it is therefore required to comply with the provisions

10 See also in this regard the Decision on the merits 133/2021 of December 2, 2021; the Decision on the merits 147/2022 of October 17, 2022; the Decision on the merits 105/2023 of August 1, 2023.

11 Art. 62. § 1. The Institute has the mission:

- 1° the protection of the common professional rights and interests of persons registered in the public register;
- 2° the supervision of access to the profession of certified accountant and certified tax advisor, through the organization of an admission examination and an internship, as well as a proficiency examination;
- 3° the maintenance of a public register;
- 4° the supervision of continuing education;
- 5° the supervision of the practice of the profession, taking all necessary guarantees in terms of competence, independence, and professional integrity by establishing a disciplinary regulation;
- 6° granting access to the profession to professionals from another Member State wishing to exercise the activities referred to in Articles 3 and 6 in Belgium;
- 7° the supervision of compliance with the terms and conditions by persons who temporarily and occasionally exercise the professional activities referred to in Article 23 in Belgium;
- 8° within the framework of the administrative cooperation organized between Member States to ensure the proper functioning of the internal market, the secure exchange of information and data with the competent authorities of other Member States, particularly via the Internal Market Information System (IMI) regarding the profession and professionals, in accordance with Articles XV.49 and XV.52 of the Code of Economic Law and Articles 27 and 27/1 of the law of February 12, 2008, establishing a general framework for the recognition of professional qualifications in the EU;
- 9° ensuring compliance by the persons referred to in Article 6, § 2, with the terms and conditions of the law of September 18, 2017, relating to the prevention of money laundering and terrorist financing and to the limitation of the use of cash.

§ 2. The Institute processes personal data necessary for the exercise of its missions in accordance with Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation). The Institute is the data controller provided for in this regulation.

Personal data is processed by the Institute for the purposes of:

- 1° the application of the legal, regulatory, and normative framework;
- 2° cooperation between the competent Belgian authorities or those of other States;
- 3° the establishment of reports and statistics allowing the Institute to optimize its activities.

The Institute designates a data protection officer responsible for the functions and missions referred to in the General Data Protection Regulation.

Decision on the merits 150/2024—11/23

of the GDPR, including the mandatory designation of a data protection officer.

Article 62, § 2 in question also explicitly mentions the purposes of data processing. Furthermore, the public register is also governed in detail in Articles 29 to 35 of the law of March 17, 2019, with particular attention to the categories of personal data included in the register and their retention period. Additionally, the public register must be maintained in the form of an electronic database, and the data it contains must be made public in accordance with Article 10 of the Royal Decree of September 11, 2020.

35. Following the legislative intervention, the existing structure has been modernized and adapted to the current context. Among other things, the rules regarding access to the profession have been better adapted to social constraints. Specifically regarding the public register, the Explanatory Memorandum of the law of March 17, 2019, provides that the public register aims, on the one hand, to offer businesses the guarantee that the registered professional is qualified to carry out the activities or, in other words, that they possess all the required professional qualifications for this practice, and on the other hand, to allow potential clients to consult the public register to contact individuals engaged in professional activities.



36. While these purposes are similar to those pursued by the defendant (see point 26), it is nevertheless understood that the defendant cannot substitute for the legislator and anticipate any legislative initiative. Consequently, the Contentious Chamber finds that the defendant acted unlawfully by relying on legal provisions that did not impose any obligation to publish the personal data of the individuals concerned and to make them accessible via a search engine. Although, as such, the defendant committed a violation of the GDPR regarding the required legal basis (Article 6 of the GDPR), the Contentious Chamber exceptionally does not associate a sanction with this and pronounces a dismissal regarding the defendant. Indeed, following the intervention of the legislator, there has been, since September 30, 2020,

12 Art. 10. In accordance with Article 32 of the law, the Council of the Institute keeps the following data on natural persons up to date in the public register in the form of an electronic database and publishes it:

1° the identification data of the person concerned, namely the name, first name, and necessary contact data, namely the address where the natural person has their office, the professional telephone number, and the professional email address;

2° the registration number and the quality conferred by the Institute to the person concerned and the mentions included in the public register;

3° the date of the granting of the quality by the Institute to the person concerned and the date of the first registration in the public register;

4° the language of the person concerned referred to in Article 30, 7°, of the law;

5° where applicable, the mandates that the person concerned performs as a member of a management body of a legal entity to which the quality and/or professional title has been conferred by the Institute;

6° where applicable, the address where the professional has their office and the network(s) to which the person concerned belongs.

13 Explanatory Memorandum, DOC 54-3522/3522, pp. 27-28.

14 Date of entry into force of the law of March 17, 2019, relating to the professions of chartered accountant and tax advisor.

Decision on the Merits 150/2024—12/23

the express obligation to maintain the public register in the form of an electronic database and to make public the specified data of the concerned individuals. Considering the legislative framework within which the defendant has been processing the personal data of the concerned individuals since September 30, 2020, the publication of the relevant data on the website now occurs under Article 6.1 c) of the GDPR.

-

Elections

37. The second part of the complaint concerns the fact that the complainant was contacted at his professional email address by several candidates in the elections within the defendant's organization.

38. Following the investigation by the Inspection Service in this regard, the defendant indicated that the information from the table, which can be accessed online, was used by the election candidates to write to members entitled to vote in the elections. The Inspection Service asserts that this finding implies a violation of the obligation of data processing security (Article 32 of the GDPR) and the obligation to notify data breaches (Articles 32-33 of the GDPR).

39. Based on the findings of the Inspection Service, the defendant notified the data breach on November 29, 2019, to which the Data Protection Authority responded on December 4, 2019, indicating that the investigation into this data breach should not be pursued, without further justification for this decision.

40. Following the request for information sent by the defendant to all election candidates, several candidates confirmed that, directly or indirectly (through professional associations), information from the table available online was used to write to members entitled to vote in the elections. The overall copy of the contact data on the defendant's website being impossible due to a "captcha" on each search, several candidates and professional associations copied the contact data of the members one

by one in order to subsequently send the election campaign email.

41. No document demonstrates that at any time the defendant communicated member lists to the election candidates or their professional associations. The defendant thus claims not to have been involved in sending the election campaign emails. In this sense, the report of the Inspection Service confirms that the sending of election campaign emails does not constitute processing by the defendant, but rather an abusive use (the reuse of publicly accessible personal data not being free<sup>15</sup>) of the published personal data of members and trainees by various election candidates. In this sense, there is therefore

<sup>15</sup> See also in this regard the Decision on the Merits 35/2020 of June 30, 2020.

Decision on the merits 150/2024— 13/23

There is, according to the Contentious Chamber, no violation of personal data within the meaning of Article 4.12 of the GDPR in relation to the defendant. One cannot speak of a data breach in the sense of Articles 32 and 33 in conjunction with Article 4.12 of the GDPR, as the defendant himself published the data via the search engine. The reuse for electoral purposes was not due to a security breach within the meaning of Article 4.12 of the GDPR in the absence of appropriate technical and organizational measures. However, the defendant has nothing to do with the processing of the data reused for electoral purposes and is therefore not responsible for this processing. There was a lack of legal basis for the publication; this constitutes a violation in itself and does not imply that one can also deduce a lack of measures to conclude a violation of Articles 32 and 33. On the other hand, there was indeed improper use of the published personal data of members and trainees by various candidates in the elections, but not by the defendant. Therefore, the defendant has not committed any violation of Articles 32 and 33.5 of the GDPR.

42.

In his response conclusions, the defendant states that both formal and written requests as well as informal and verbal requests from candidates to access the email address lists of members with voting rights were categorically and explicitly refused, as this did not correspond to the purposes of processing the tables. In this regard, the Contentious Chamber emphasizes that regardless of any request from a candidate, the defendant, as the data controller of the tables, must be able to demonstrate compliance with the principles set out in Article 5.1 of the GDPR, including the purpose limitation principle, based on Articles 5.2 and 24 of the GDPR.

Specifically, this means that the defendant must ensure that the data he processes in the tables is not used in a manner incompatible with the purpose. It follows that the defendant must implement all reasonable means to prevent any incompatible use of the personal data contained in the tables. For this purpose, it is not sufficient to refuse to provide member lists in the event of a request for such a list. The defendant must, as far as possible, prevent the processing of data for incompatible purposes, notably by providing adequate information on the purposes for which the data included in the tables may be used. The Contentious Chamber refers in this regard to Recital 78 of the GDPR.

<sup>16</sup> For the purposes of this regulation, the following is understood:

[...]

12) "personal data breach": a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of personal data transmitted, stored, or otherwise processed, or unauthorized access to such data;

<sup>17</sup> See in this regard Recital 78 of the GDPR: The protection of the rights and freedoms of natural persons with regard to the processing of personal data requires the adoption of appropriate technical and organizational measures to ensure that the requirements of this regulation are met. In order to be able to demonstrate compliance with this regulation,

Decision on the Merits 150/2024—14/23

43. The Contentious Chamber observes that the respondent ceased the publication of contact data via the public search engine as soon as it became aware, through the Inspection Service, of the use of this contact data for sending electoral propaganda emails. From that moment on, the contact data of members was no longer accessible by default, and its publication was only possible with prior consent, meaning that this contact data was no longer accessible by default on the public search engine. This

measure aimed to minimize processing (Article 5.1 c) of the GDPR) and also allowed the data subject to exercise control over the processing of their data, as their contact data was no longer published without their consent (Article 6.1 a) of the GDPR). The Contentious Chamber believes that the respondent should have implemented this measure from the outset and, furthermore, ensured the required transparency (Article 5.1 a) of the GDPR) regarding data processing (see footnote 11) by informing election candidates in advance that contact data could not be used for electoral purposes, as this is incompatible with the initial purpose (Article 5.1 b) of the GDPR).

44. Given the absence of a finding by the Inspection Service regarding the non-compliance with the principles of transparency, purpose limitation, and data minimization (Article 5.1 a), b), and c) of the GDPR) as well as the accountability of the respondent (Article 5.2 of the GDPR) concerning the reuse by its members of the contact data included in the tables by the election candidates, the Contentious Chamber limits itself to this remark, and no sanction is imposed in this regard.

-

#### Direct Marketing

45. The third part of the complaint concerns the use of personal data of members and trainees for direct marketing purposes by the respondent, as well as for direct marketing purposes by commercial companies that use the email addresses of members and trainees in the context of organizing events.

46. The Inspection Service assumes that the sending of information by the respondent, even without pursuing a commercial purpose, in the form of internal or external newsletters or the sending of invitations to events—whether in collaboration with an external commercial partner or not—falls under the concept of direct marketing. Furthermore, according to the Inspection Service, the respondent also invokes several legal bases for the same processing (Article 6.1 c), e), and f) of the GDPR).

In accordance with the regulation, the data controller should adopt internal rules and implement measures that respect, in particular, the principles of data protection by design and data protection by default. These measures could consist, among other things, of minimizing the processing of personal data, pseudonymizing personal data as soon as possible, ensuring transparency regarding the functions and processing of personal data, allowing the data subject to control the processing of their data, and enabling the data controller to establish or enhance security measures. [...] (emphasis added)

Decision on the Merits 150/2024— 15/23

47.

The defendant presents elements to refute the assertion that this concerns direct marketing. Thus, the defendant emphasizes that these are merely informational messages sent in its capacity as a professional organization, which falls under its legal obligation to inform members and trainees pursuant to Article 44 of the law of April 22, 1999, as applicable at the time of the facts. Under this legal provision, the defendant must ensure that members and trainees properly execute the tasks assigned to them and also possess the necessary skills in this regard. The defendant highlights that the purpose of the messages it sent was solely to provide information to train members and trainees; these communications were not intended to promote or sell anything.

48. Regarding these communications, the defendant distinguishes between internal newsletters and external newsletters. Concerning the "internal" newsletters that are addressed only to members and trainees, the defendant specifies that these contain important information about changes and facts concerning, primarily, essential and concrete elements for the practice of the profession and regarding the functioning of the professional organization. The examples cited in this regard include the sending of communications from the tax administration regarding tax returns or tax deadlines, invitations to pay contributions, and the entry into force of regulations or directives. Regarding the "external" newsletters that are addressed to both members and interested parties, these involve the communication of information to those who have subscribed to them.

49. In light of Recommendation No. 01/2020 of January 17, 2020, concerning the processing of personal data for direct marketing purposes, which defines the notion of 'direct marketing'<sup>18</sup>, the Disciplinary Chamber considers that, in this case, the defendant's newsletters cannot be regarded as direct marketing. Although the notion of direct marketing must be interpreted broadly, in the present

case, the primary purpose of sending the newsletters is purely to ensure the training of members and their professional competence, with the communication of information occupying a central place, without aiming at any promotion of goods, services, brands, or ideas. The newsletters are merely a tool that contributes to the fulfillment of the defendant's legal mission to provide training for its members belonging to the relevant professional category. They allow the defendant to reach the entire target group in a straightforward manner and to provide,

18 Any communication in any form, solicited or unsolicited, emanating from an organization or a person and aimed at the promotion or sale of services, products (paid or free), as well as brands or ideas, addressed by an organization or a person acting in a commercial or non-commercial context, that is directed to one or more natural persons in a private or professional context and involves the processing of personal data.

Decision on the merits 150/2024— 16/23

in an accessible manner, the most recent essential information that allows members to exercise their profession with the most up-to-date required knowledge. The specificity of these newsletters lies in a legal mission of the defendant to ensure training and guarantee the competence of its members. They must therefore be distinguished from newsletters that generally contain promotional communications. 50. However, this does not change the fact that the sending of newsletters by the defendant involves the processing of personal data and must therefore be based on one of the legal bases of Article 6.1 of the GDPR.

51. The legal mission to train members and trainees does not ipso facto mean that there is also a legal obligation to send newsletters, which would allow the defendant to invoke Article 6.1 c) of the GDPR as a legal basis.

52. For internal newsletters, the defendant invokes the legal obligation within the meaning of Article 6.1.c) of the GDPR as a legal basis. Specifically, the defendant refers to Articles 44 et seq. of the aforementioned law of April 22, 1999, which contains the obligation to inform its members, as part of its broader obligations to ensure professional competence and continuing education. In some cases, more specific legislation has served as a legal basis. Thus, regarding election campaign emails, reference is made to the royal decree of November 28, 2018, determining the rules for the organization and functioning of the Professional Institute of Accountants and Tax Advisors, for communications on the Council's directives regarding anti-money laundering obligations, to Article 86, § 2 of the law of September 18, 2017, and for communications related to mandatory seminars for trainees to Article 17 of the defendant's internship regulation as approved by the royal decree of April 10, 2015.

53. Regarding internal newsletters that do not fall under the legal framework, the defendant indicates that these are rather limited communications based on the legitimate interests, as a professional organization, to inform and keep its members, trainees, and stakeholders updated in the form of specific communications that contributed (in)directly to the purposes of the organization.

54. In contrast, external newsletters were only sent to individuals who had subscribed via the designated form on the defendant's website. The legal basis invoked by the defendant for this purpose was the consent of the data subject.

19 Law of September 18, 2017, on the prevention of money laundering and the financing of terrorism and on the limitation of the use of cash.

20 Royal decree of April 10, 2015, approving the internship regulation of the Professional Institute of Accountants and Tax Advisors.

Decision on the merits 150/2024— 17/23

55. The Disciplinary Chamber notes that regarding the internal information letters for which the defendant invokes the legal obligation (Article 6.1 c) of the GDPR), the defendant himself acknowledges that Article 44 of the law of April 22, 1999, concerning accounting and tax professions, is not always sufficiently precise when the article does not explicitly provide that the defendant must send communications to its members. Furthermore, the defendant assumes that to achieve the purpose of Article 44, it is inherent and necessary for the members to be informed. The defendant believes that it is impossible to ensure the professional competence and to carry out the continuing education of its members and trainees without communications related to new legislation or continuing

education.

56. However, this reasoning cannot be followed by the Disciplinary Chamber. As already explained in this decision (see point 32), the Disciplinary Chamber emphasizes that Article 44 of the law of April 22, 1999, does not contain any provision obliging the defendant to send information letters in the form of emails to members and trainees. On the contrary, the defendant has sent these personal communications solely based on a weighting that he has performed himself. The defendant therefore did not act on the basis of an obligation imposed by the legislator. The Disciplinary Chamber must therefore conclude that Article 6.1 c) of the GDPR could not and cannot constitute a basis for the sending by email of internal information letters, constituting at the time of the facts a violation of Article 6.1 of the GDPR.

57. Regarding the internal information letters that, according to the defendant, fall outside the legal framework, the defendant indicates that these are rather limited communications, based on its legitimate interests. Since the defendant is an organization established by law, tasked with a public interest mission, it cannot invoke Article 6.1 f) of the GDPR for the exercise of the information and continuing education mission of its members, so that regarding this type of internal information letters, it is also appropriate to note a violation of Article 6.1 of the GDPR.

58. The Disciplinary Chamber notes that Article 44, first paragraph of the law of April 22, 1999, assigns to the defendant the mission of ensuring training and maintaining the ongoing organization of a body of specialists capable of exercising their activities with all the necessary guarantees in terms of competence, independence, and professional integrity. Given that the Disciplinary Chamber believes that the training of members belonging to a specific professional category is necessary to ensure that the

21 Art. 44, first paragraph of the law of April 22, 1999, concerning accounting and tax professions: The professional institute is tasked with ensuring training and maintaining the ongoing organization of a body of specialists capable of exercising the activities referred to in Article 49, with all the necessary guarantees in terms of competence, independence, and professional integrity. The professional institute also ensures the proper performance of the missions entrusted to its members, and to the persons subject to its supervision and disciplinary power.

Decision on the merits 150/2024—18/23

The profession is exercised with the exact knowledge and competence constitutes a public interest mission within the meaning of Article 6.1 e) of the GDPR; this was and still is the legal basis to be applied, also in light of the currently applicable law of March 17, 2019, particularly Article 62, § 1, under which the defendant sends internal information letters in the exercise of its public interest mission.

59. The Disciplinary Chamber has no comments regarding the external information letters sent by the defendant, given that they are still only addressed to the concerned individuals who have given their prior, free, explicit, and informed consent for this purpose (Article 6.1 a) of the GDPR).

b) Subcontracting Contracts

60. The report from the Inspection Service indicates that no subcontracting contract has been concluded with the three publishers responsible for sending the defendant's publications, which means that Article 28.3 of the GDPR has not been respected.

61. The defendant first argues that the analysis of whether a subcontracting contract should be concluded was still ongoing during the Inspection Service's investigation. The defendant questions whether the publishers in question should be considered as subcontractors, given that the service they provide consists of printing the defendant's publications and distributing them both to the defendant's members and trainees as well as to individuals who order them directly from them. Furthermore, the publications are also offered independently by the concerned publishers. The defendant adds that following the Inspection Service's investigation, subcontracting contracts have been concluded with each of the publishers.

22

Art. 62. § 1. The Institute has the mission:

1° to protect the common professional rights and interests of individuals registered in the public register;

2° to supervise access to the profession of certified public accountant and certified tax advisor, by organizing an admission exam and an internship, as well as a competency exam;

3° to maintain a public register;

4° to supervise continuing education;

5° to supervise the practice of the profession, taking all necessary guarantees in terms of competence, independence, and professional integrity by establishing a disciplinary regulation;

6° to grant access to the profession to professionals from another Member State wishing to carry out the activities referred to in Articles 3 and 6 in Belgium;

7° to supervise compliance with the terms and conditions by individuals who temporarily and occasionally practice in Belgium the professional activities referred to in Article 23;

8° within the framework of the administrative cooperation organized between Member States to ensure the proper functioning of the internal market, the secure exchange of information and data with the competent authorities of other Member States, particularly via the Internal Market Information (IMI) system regarding the profession and professionals, in accordance with Articles XV.49 and XV.52 of the Code of Economic Law and Articles 27 and 27/1 of the law of February 12, 2008 establishing a general framework for the recognition of professional qualifications in the EU;

9° to ensure compliance by the individuals referred to in Article 6, § 2, with the terms and conditions of the law of September 18, 2017, concerning the prevention of money laundering and the financing of terrorism and the limitation of the use of cash. [own emphasis]

Decision on the merits 150/2024—19/23

62.

The Dispute Chamber recalls that the role of a subcontractor does not arise from the nature of an entity processing data, but rather from its concrete activities in a specific context. The same entity may simultaneously act as a data controller for certain processing activities and as a subcontractor for others; the qualification of data controller or subcontractor must be assessed based on specific data sets or data processing activities. The nature of the service determines whether the processing activity amounts to processing personal data on behalf of the data controller within the meaning of Article 4.8 of the GDPR.

In accordance with the Guidelines of the European Data Protection Board<sup>23</sup>, the Dispute Chamber considers that the service provided by the publishers consists of printing publications and distributing printed materials. This service does not specifically aim at processing personal data but primarily focuses on the printing and distribution of the defendant's publications and only secondarily on the processing of the recipients of the publications, namely the members and trainees.

63. Consequently, in this case, the publishers must be regarded as distinct data controllers, capable of independently determining the purposes and means of the processing necessary to provide the service. This is also evident from the fact that the publications are offered independently by the concerned publishers, notably through their online store, where not only the members and trainees of the defendant but also other individuals can place an order directly with the publisher. This applies insofar as the offering of the publications involves the processing of data of individuals who have placed an order in order to deliver the ordered publication to them.

64. This leads the Dispute Chamber to conclude that no violation of Article 28.3 of the GDPR has been committed by the IPCF. Regarding the ITAA, it appears from the case file that subcontracting contracts have been concluded with various partners, primarily IT communication partners, partners for events, and professional associations accredited for training purposes, so there is also no violation of Article 28.3 of the GDPR.

c) Data Protection Officer

65. The Inspection Service found that at the time of the events forming the subject of the complaint, the defendant did not have a data protection officer. According to the Inspection Service, this is contrary to what had already been established previously in Opinion No. 140/2018 of the Data Protection Authority dated December 19, 2018, which indicated that

23 Guidelines 07/2020 on the concepts of data controller and processor in the GDPR:

[https://edpb.europa.eu/system/files/2022-02/eppb\\_guidelines\\_202007\\_controllerprocessor\\_final\\_fr.pdf](https://edpb.europa.eu/system/files/2022-02/eppb_guidelines_202007_controllerprocessor_final_fr.pdf),

particularly pages 31-32.

Decision on the merits 150/2024—20/23

not only the Institute of Tax Advisors and Accountants (ITAA), but also the former Professional Institute of Certified Accountants and Tax Advisors (IPCF) have the status of a public law professional organization endowed with legal personality<sup>24</sup> and were therefore already required to have a data protection officer. The Inspection Service specifies that the ITAA and the IPCF are professional organizations established by law. Furthermore, the Inspection Service emphasizes that on the IPCF's own website<sup>25</sup>, it is stated that it is a public law entity. The IPCF being a legal person under public law within the meaning of Article 5.2° of the law of July 30, 2018, concerning the protection of individuals with regard to the processing of personal data, the Inspection Service concludes that by not appointing a data protection officer, the defendant violated Article 37 of the GDPR.

66. The defendant, for its part, remains convinced that it was not a public entity at the time of the application of the law of April 22, 1999, and could therefore invoke Article 6.1 f) of the GDPR. The defendant asserts that the Inspection Service does not thoroughly justify how it falls under the notion of "public authority" in the law of July 30, 2018<sup>26</sup>, other than the fact that the Inspection Service merely establishes that the defendant is a public law professional organization endowed with legal personality. The defendant adds that at the time, it did not depend on the federal state since its operations were entirely financed by the contributions of members and trainees. The governing body was also not appointed by a government, but by a democratic vote of the members. The defendant also invokes the fact that it does not clearly see how its management would have been subject to state control. These elements, along with the defendant's observation that it did not fall under any of the other cases in which the appointment of a data protection officer is mandatory and the absence of a specific legal provision requiring the appointment of a data protection officer, lead the defendant to conclude that it was not required to appoint a data protection officer.

67. The Disciplinary Chamber notes that based on Article 37.1 a) of the GDPR in conjunction with Article 5, paragraph 2, 2° of the law of July 30, 2018<sup>27</sup>, the defendant is considered by the Inspection Service as a public authority, given that as a professional organization, the defendant was established by law and is endowed with legal personality under Article 43 of the law of April 22, 1999, and is therefore required to have a data protection officer. The aforementioned provision provides for the creation of an Institute

24 See point 35 of opinion no. 140/2018 of December 19, 2018, on the draft law concerning the professions of accountant and tax advisor.

25 <https://www.itaa.be>.

26 Law of July 30, 2018, concerning the protection of individuals with regard to the processing of personal data.

27 Law concerning the protection of individuals with regard to the processing of personal data.

Decision on the Merits 150/2024— 21/23

Professional Association of Certified Accountants and Tax Advisors with legal personality.

The purpose of this professional organization is defined in Article 44 of the aforementioned law and essentially consists of ensuring the training and ongoing organization of its members and trainees so that they practice the profession with the required guarantees of competence, independence, and professional integrity.

68. The legal entities established by law are public law entities. By providing for an institution by legal means, this legal entity, in this case the defendant, is entrusted with a public interest mission. It is indeed established that social interest is served by providing the necessary guarantees in financial transactions. In this regard, the Disciplinary Chamber does not follow the reasoning of the Inspection Service, which argues that—by application of Article 5, paragraph 2, 2° of the law of July 30, 2018—the defendant should already be considered a public authority under the law of April 22, 1999 and was required to have a data protection officer, thus there is no violation of Article 37.1 a) of the GDPR at the time of the facts.

69. By way of derogation from the findings of the Inspection Service, the Disciplinary Chamber believes that Article 5 of the law of July 30, 2018 should not be applied because the definition of public

authority provided therein is applicable only within the law of July 30, 2018 itself and therefore does not serve to define the notion of public authority in the sense of Article 37.1 a) of the GDPR. Although the defendant as such did not violate Article 37.1 a) of the GDPR, the Disciplinary Chamber notes that the GDPR imposes on public authorities the obligation to designate a data protection officer, which, by analogy to good practices, also applies to organizations carrying out a public interest mission, such as the professional organization in question. For the sake of completeness, the Disciplinary Chamber notes that the defendant acknowledges being a public authority since the entry into force of the law of March 17, 2019. According to the defendant, this arises from the simple fact that Article 62, § 2, paragraph 3 of the law of March 17, 2019 contains the express obligation to designate a data protection officer. The Disciplinary Chamber believes it is important to emphasize that such an express obligation to designate a data protection officer in the national legislation specifically applicable to the legal entity cannot be an absolute condition for the application of Article 37.1 of the GDPR. Indeed, Article 37.1 of the GDPR is self-sufficient without requiring the national legislator to explicitly provide for the designation of a data protection officer for the legal entity in question.

### III. Regarding corrective measures and sanctions

70. It is up to the Disciplinary Chamber to determine the most appropriate sanction for the violation of Article 6.1 of the GDPR based on the options available to it under Article

#### Decision on the Merits 150/2024— 23/23

Such an appeal may be introduced by means of a contradictory application which must include the mentions listed in Article 1034ter of the Judicial Code<sup>28</sup>. The contradictory application must be filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code<sup>29</sup>, or via the e-Deposit computer system of Justice (Article 32ter of the Judicial Code).

(signed) Hielke HIJMANS

President of the Disciplinary Chamber

28 The application contains, under penalty of nullity:

1° the indication of day, month, and year;

2° the name, first name, domicile of the applicant, as well as, where applicable, their qualifications and national register number or business number;

3° the name, first name, domicile and, where applicable, the quality of the person to be summoned;

4° the subject and a brief summary of the grounds for the application;

5° the indication of the judge who is seized of the application;

6° the signature of the applicant or their lawyer.

29 The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed with the registry.